

# **Master Services Agreement (Sample Contract)**

## **1. Payment**

Payment shall be made by the Client within ninety (90) days of receipt of a valid invoice from the Provider. Late payments shall accrue interest at 1% per month.

## **2. Confidentiality**

Each party shall keep the other party's Confidential Information secret and shall not disclose it to any third party for a period of three (3) years following disclosure.

## **3. Liability**

The total aggregate liability of either party arising out of or related to this Agreement shall not exceed the fees paid by the Client in the preceding six (6) months, regardless of the form of action.

## **4. Termination**

Either party may terminate this Agreement for convenience upon fifteen (15) days' prior written notice to the other party.

## **5. Intellectual Property**

All deliverables created by the Provider under this Agreement shall be owned by the Provider, with the Client granted a non-exclusive, non-transferable license to use such deliverables solely for internal business purposes.

## **6. Governing Law**

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles.

## **7. Dispute Resolution**

Any dispute arising out of or relating to this Agreement shall first be submitted to good-faith negotiation between the parties' senior representatives before either party may pursue litigation.